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Draft law for public discussion

Organic law of the Republic of Belarus on the President of the Republic of Belarus

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Table of Contents

CHAPTER 1. GENERAL PROVISIONS....3
CHAPTER 2. LEGAL STATUS OF THE PRESIDENT....3
CHAPTER 3. ACTS OF THE PRESIDENT....5
CHAPTER 4. SUPPORT OF ACTIVITIES OF THE PRESIDENT....6
CHAPTER 5. THE PRESIDENTIAL OFFICE....8
CHAPTER 6. SOCIAL AND OTHER GUARANTEES....9
CHAPTER 7. FINAL PROVISIONS....11

Draft version[1] as of 17.11.2023

Organic law of the Republic of Belarus on the President of the Republic of Belarus

This Organic Law establishes the procedure for the exercise of powers, as well as financial, material and other types of support for the President of the Republic of Belarus (hereinafter – the President) under and pursuant to the Constitution of the Republic of Belarus (hereinafter – the Constitution).

CHAPTER 1. GENERAL PROVISIONS

Article 1. General terms and definitions of this Organic Law

1. The President of the Republic of Belarus is a person that has been elected President in the manner established by the Constitution of the Republic of Belarus, the Electoral Code of the Republic of Belarus, and took the Oath of office.

2. This Organic Law is also applicable to the Chairman of the Soym while performing the duties of the President with appropriate distinctions provided for in this Organic Law.

CHAPTER 2. LEGAL STATUS OF THE PRESIDENT

Article 2. Legal status and support of the President-elect who hasn't taken the Oath of office yet

1. The President-elect who hasn't taken the Oath of office yet shall be provided with the following:

1.1. protection in accordance with the law;

1.2. official car with driver;

1.3. secretariat composed of three employees.

2. The professional activities of secretariat employees shall be directed by the President-elect who hasn't taken the Oath yet.

[1] Draft Law "On the President of the Republic of Belarus" was made in accordance with draft Constitution of the Republic of Belarus which was drafted by the Public Constitutional Commission https://kanstytucyja.online/new-constitution

3. The President-elect who hasn't taken the Oath yet shall be provided with all information needed to perform presidential duties in a proper manner after entering the office.

4. The President-elect is obliged to cease activities incompatible with the status of the President before entering the office.

Article 3. The procedure for swearing in of newly-elected President

1. Upon entering the office, the President shall take the Oath in accordance with article 91 of the Constitution.

2. The President shall take the Oath in the Soym building at the session of the Soym.

3. The President shall place his hand on the Constitution of the Republic of Belarus while taking the Oath.

4. After reading out the text of the Oath, the President shall sign the Oath of office act.

5. In the event that the President refuses to take the Oath or takes the Oath with reservations, or refuses to sign the Oath of office act, or signs it with reservations, he may not take the office.

6. The Oath of office act signed by the President shall be kept in the Office of the Soym for the duration of President's term of office and in the National Archives of the Republic of Belarus upon expiration of President's term of office.

7. Upon the signing of the Oath of office act, the Chairman of the Central Election Commission of the Republic of Belarus shall issue a certificate of the President of the Republic of Belarus to the President, following which the National Anthem of the Republic of Belarus shall be performed.

8. The President's swearing-in ceremony shall be broadcast live on national radio and television.

Article 4. Declaration of assets and income of the President

1. The rules for declaring assets and income of state officials shall also apply to declaration of assets and income of the President.

2. In the event of failure to submit a declaration of assets and income, the President may not receive a salary until the corresponding declaration has been submitted.

Article 5. Restrictions concerning the conflict of interest

1. The President shall be subject to the exact same statutory conflict-of-interest restrictions as other state officials.

2. If the President finds himself in a conflict-of-interest situation while in office, he shall be obliged to eliminate the conflict of interest without any delay.

3. A person that held the office of President may not enter military or special service of foreign countries after leaving the office of President.

Article 6. Exercise of presidential powers in the event of vacancy in office

1. The Chairman of the Soym shall be vested with presidential powers by a decision of the Soym in the event of a vacancy in the office of the President or his inability to perform presidential duties on the grounds provided for in the Constitution.

2. The procedure for entering the office of acting President is stipulated by the Statute of the Soym.

CHAPTER 3. ACTS OF THE PRESIDENT

Article 7. Acts of the President

1. The President shall issue ordinances, edicts and decrees in accordance with article 97 of the Constitution.

2. The texts of ordinances and decrees of the President shall be published on the National Legal Internet Portal of the Republic of Belarus in controlled condition with account taken of subsequent amendments and additions.

Article 8. Ordinances of the President

1. The President shall issue ordinances on the organization of internal work of the Presidential Office and in other cases provided by legal acts.

2. Ordinance of the President shall enter into force when signed, unless a different date is specified in it.

3. Ordinance of the President shall be registered in the Presidential Office, and a reference number shall be assigned to it.

Article 9. Countersigning of edicts of the President

1. The President shall hand over the signed edict to be countersigned by the Prime Minister in cases provided by the Constitution.

2. The Prime Minister shall notify the President of affixing a countersignature or refusal to affix it within 3 working days. In case of refusal to affix a countersignature, the edict shall be sent back to the President together with a written justification for the refusal.

3. If a proposal for issuance of an edict is initiated by the Prime Minister where provided for by the Constitution, the Prime Minister shall send the corresponding written proposal to the President. Within 3 working days from the day of receipt of the proposal, the President must either issue an edict on the basis of the proposal or refuse to issue it subject to mandatory written justification for the refusal.

Article 10. Decrees of the President

1. If the Soym is unable to gather for a session within 24 hours under conditions of martial law, the President shall issue a decree having the force of law on the proposal of the Government.

2. The decree of the President shall enter into force from the day of its publication on the National Legal Internet Portal of the Republic of Belarus, unless a different date is specified in the decree.

Article 11. The procedure for signing a bill into law

1. The bill submitted for signature and official publication to the President in the manner prescribed by the Statute of the Soym must include a signature of the Chairman or Deputy Chairman of the Soym which confirms the authenticity of the bill adopted by the Soym.

2. The bills submitted for signature and official publication to the President shall be registered in a special book with subsequent indication of the date of signature and publication or a note about sending them back to the Soym for reconsideration shall be made.

3. The bills signed into laws by the President shall be kept in the Office of the Soym.

Article 12. The procedure for holding consultations when appointing the Prime Minister

1. The President shall hold consultations with the Soym in the process of appointing the Prime Minister in cases provided for in article 102 of the Constitution.

2. Consultations shall be held in the form of official meetings. Discussion of candidates for Prime Minister shall be conducted on the basis of written proposals submitted by parliamentary factions.

3. The President is obliged to ensure transparency of the consultation process, which includes taking minutes of the meetings and making them available for inspection by members of the Soym.

4. The President shall nominate or appoint a candidate to the post of Prime Minister no earlier than 3 calendar days after completion of all consultations.

CHAPTER 4. SUPPORT OF ACTIVITIES OF THE PRESIDENT

Article 13. Attributes of the President

The President shall have a round official seal bearing an inscription “President of the Republic of Belarus”, a flag of the head of state, as well as special forms bearing an imprint of the national coat of arms of the Republic of Belarus.

Article 14. Salary of the President

1. The monthly salary rate of the President shall be 12 times the base rate of pay of civil servants of the Republic of Belarus. No state official may receive a higher salary than the President.

2. The President may not receive state benefit payments that are not provided for by this Organic Law whilst holding his office.

Article 15. Residential, working and representation premises of the President

1. The official residence of the President consisting of residential, working and representation premises is located in the capital of the Republic of Belarus.

2. The President shall be provided with official housing in the city of Minsk or no further than 20 km away from the border of the city of Minsk for the duration of his duty.

3. Expenses for the maintenance of the President's official housing, including utilities, lighting and maintenance personnel costs, shall be reimbursed using state budget funds.

Article 16. Official means of transport of the President

1. The President shall be provided with special-purpose transport means: an airplane and two cars.

2. The President shall have the right to use a car for personal or official purposes.

3. The President may travel first class or equivalent level of comfort when using a regular airline or regular train to travel abroad.

Article 17. Reimbursement of official and representation expenses of the President

1. The President shall be fully reimbursed for representation expenses within the Republic of Belarus and the expenses incurred during his visits to foreign countries (in accordance with international diplomatic practice) on condition of accountability. The President shall also receive reimbursement for non-accountable expenses in the amount of 20 percent of his monthly salary rate.

2. Reimbursement of representation and other expenses of the President shall be carried out by the Presidential Office.

Article 18. Ensuring the performance of functions provided for by state and (or) diplomatic protocol

1. The Ministry of Foreign Affairs of the Republic of Belarus shall be entrusted with the duty to ensure the performance of functions provided for by state and (or) diplomatic protocol when giving a reception and rendering services to foreign officials with the participation of the President, and also when the President makes official visits to foreign countries.

2. The Presidential Office shall be entrusted with the duty to ensure the performance of functions related to holding of formal and (or) working meetings with the participation of the President within the Republic of Belarus.

Article 19. The right of the President to speak on the national radio and television

1. The President shall, at his own request, receive airtime on national radio and television to speak on the domestic and foreign policy of Belarus on a monthly basis, as well as deliver annual state-of-the-nation address to the people and the Soym of Belarus.

2. In urgent cases, the President must be given airtime not provided for by the broadcast schedule of national radio and television.

Article 20. Ensuring the security of the President

The President and members of his family shall be provided with state protection in accordance with the Law of the Republic of Belarus “On State Protection”.

Article 21. Reimbursement of expenses related to the spouse of the President

1. The spouse of the President shall not receive any remuneration or other benefits not provided for by this Organic Law.

2. The spouse of the President shall have the right to use an official car for personal and official purposes.

3. The spouse of the President or other person accompanying the President in accordance with state and (or) diplomatic protocol shall be given a leave for this period at the primary place of employment with retention of their average salaries. The corresponding expenses shall be reimbursed by the Presidential Office.

4. The spouse of the President or other person accompanying the President shall be given a representation allowance to cover the expenses within the Republic of Belarus and the expenses incurred during their visits to foreign countries in accordance with international diplomatic practice on condition of accountability.

Article 22. Gifts received by the President

1. Gifts received by the President during his visits to foreign countries, as well as gifts presented to him by foreign state representatives during their visits to the Republic of Belarus are considered as state assets that shall be stored in the official residence of the President or in the museums of the Republic of Belarus, while especially valuable gifts shall be kept in the National Bank of the Republic of Belarus.

2. The procedure specified in item 1 of this article shall also be applicable to cases of presenting gifts to the President acting as the head of state within the Republic of Belarus.

CHAPTER 5. THE PRESIDENTIAL OFFICE

Article 23. The Presidential Office

1. The Presidential Office is a state institution that assists the President in the exercise of his powers and provides financial, economic and material support for the activities of the President.

2. The structure and internal rules of conduct of the Presidential Office are subject to regulations approved by the President within the budget.

3. The expenses of the Presidential Office shall be financed from the state budget.

4. The budget of the Presidential Office, including the expenses related to social and other guarantees therein expressed, shall be established by the Soym within the annual state budget.

Article 24. Legal status and powers of the Presidential Office

1. The Presidential Office is not a state government body and is not entitled to make decisions that have a binding effect on other governmental entities, organizations or citizens.

2. The activities of the Presidential Office are aimed exclusively at providing administrative, organizational and advisory assistance to the President in the exercise of his constitutional powers.

Article 25. The head and personnel of the Presidential Office

1. The head of the Presidential Office shall provide general management of the Presidential Office.

2. The head of the Presidential Office shall be appointed and dismissed by the President.

3. The head of the Presidential Office shall appoint and dismiss the employees of the Presidential Office.

4. The employees of the Presidential Office, except those that perform technical maintenance, shall be classified as civil servants.

5. The head and deputy heads of the Presidential Office and advisers to the President shall conclude employment contracts for a specified term not exceeding the term of the President's office.

6. Expiration of the President’s term of office shall not be cause for the dismissal of employees other than the head and deputy heads of the Presidential Office and advisers to the President.

CHAPTER 6. SOCIAL AND OTHER GUARANTEES

Article 26. President's leave entitlement

1. The President is entitled to 32 calendar days of annual leave.

2. Other social guarantees and benefits relating to President's annual leave shall be provided in accordance with the labor legislation of the Republic of Belarus.

3. The President shall have independence to determine the timing of his annual leave upon consultation with the Chairman of the Soym.

Article 27. Supervision of President's health

1. The President shall undergo annual physical examination at any medical institution that has an appropriate license.

2. The results of the annual physical examination of the President must be published within 30 calendar days from the date when such an examination is carried out. The information about general state of President's health must be presented in the format and form accessible to the public, while maintaining the confidentiality of personal health data in accordance with the legislation of the Republic of Belarus.

3. The President shall be provided with a personal physician for the purpose of conducting ongoing monitoring of President's health. The candidacy for the position of personal physician shall be agreed upon by the President.

4. In case of illness, the President shall be paid temporary disability benefit in accordance with the legislation of the Republic of Belarus.

Article 28. Material and social guarantees of the President after termination of office

1. Former President shall be awarded a pension in cases of expiration of the term of office, resignation or early termination of office of the President, with the exception of cases where the President was removed from office for committing a crime or violating the Oath of office.

2. The pension rate shall amount to 50 percent of the President's salary, provided that the President stays in office for the entire duration of constitutional term of office. If the President steps down from office before the expiration of constitutional term of office, the pension rate shall be reduced by 2 percent for each month remaining until the expiration of the term of office established by the Constitution. In this case, the rate of pension may not be less than half the full pension rate.

3. If the President becomes totally or partially disabled during his tenure as President, his official pension shall be increased by 25 percent.

4. If the President waives his right to receive an official pension or gets re-elected to the office of the President, payment of pension shall be stopped.

5. Payment of pension shall be suspended for the entire period of imprisonment or involuntary treatment of the President.

6. A person convicted of a crime falling under the article of the Criminal Code that provides for the punishment in the form of imprisonment for a period of not less than five years shall lose the right to receive a presidential pension.

7. Former President shall, at his (her) own request, receive free-to-use housing (residential premises) in the location of his choice in the manner established by the Government, with the exception of cases where the President was removed from office for committing a crime or violating the Oath of office.

8. If the President dies while in office, his (her) spouse shall, at his (her) own request, receive free-to-use housing (residential premises) in the manner established by the Government.

9. A person that held the office of President shall have the right to protection provided by the state for a period of five years after the date of leaving the office of President. Upon expiry of this period, the Government shall make a decision on the necessity of providing protection on a case-by-case basis, taking into account the information provided by the state security authorities and the hearing of a person that held the office of President.

10. The President shall have the right to obtain a diplomatic passport even after the expiration of his term of office, with the exception of cases where the President was removed from office for committing a crime or violating the Oath of office.

11. A person that held the office of President may waive the right to guarantees specified in this article either in part or in whole by submitting a corresponding request to the head of the Presidential Office.

Article 29. Funeral of the President

Honorable burial and perpetuation of the memory of the President shall be carried out at state expense, including cases where the President stepped down from office, with the exception of cases where the President was removed from office for committing a crime or violating the Oath of office.

CHAPTER 7. FINAL PROVISIONS

Article 30. Transitional provisions

1. Article 13 of the Law of the Republic of Belarus dated May 8, 2009, No. 16-З “On State Protection” shall be amended to read as follows:

“State Protection Service is a body of state protection forming part of the Ministry of Internal Affairs.

State Protection Service shall be formed, reorganized and abolished by the Government of the Republic of Belarus.

Regulations on the State Protection Service, as well as its structure and size of staff (excluding the employees that perform technical maintenance and provide support of the activity of the State Protection Service) shall be approved by the Minister of Internal Affairs of the Republic of Belarus."

2. The Law "On the President of the Republic of Belarus" dated February 21, 1995, No. 3602-XII with subsequent amendments and additions shall be deemed null and void.

Article 31. Entry into force of this Organic Law

This Organic Law shall enter into force from the day of its official publication.

The President of the Republic of Belarus